

VCU314557 Flores, Rafael vs. HR Mobile Services, Inc.

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-08-04

Motion: Motion for Preliminary Approval of Class Action and PAGA Settlement

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Re: Flores, Rafael vs. HR Mobile Services, Inc.

Case No.: VCU314557

Date: August 4, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Motion for Preliminary Approval of Class Action and PAGA Settlement

Tentative Ruling: To grant the motion and set the motion for final approval for March 9, 2027, 8:30 am, Dept. 2.

Attorneys' Fees and Costs

Attorneys' fees of 35% of the gross settlement fund of \$150,000 or \$52,500 and costs not to exceed \$20,000 are sought by Plaintiff's counsel.

Counsel has utilized the percentage of common fund methodology as well as provided adequate lodestar information to evaluate the reasonableness of the fee request.

Here, Counsel indicates that the firm has spent 94 hours at rates ranging from \$950 to \$600, per hour totaling a lodestar of \$83,420 resulting in a negative lodestar (Supplemental Declaration of Otkupman ¶12)

Further, Counsel indicates presently incurred costs of \$5,425.41. Therefore the Court approves costs not to exceed \$20,000.

Therefore, the Court grants the motion and Plaintiff's deductions from the gross settlement of \$150,000 are preliminarily approved as follows:

Preliminarily Approved Attorney Fees (35%):

\$52,500

Preliminarily Approved Attorney Costs (up to):

\$20,000

Preliminarily Approved Enhancement Payment to Plaintiff :

\$10,000

Preliminarily Approved Settlement Administrator Costs

\$10,000

Preliminarily Approved Total PAGA Penalties

\$25,000

Preliminarily Approved Net Settlement Amount

\$32,500

Therefore, the Court sets the motion for final approval hearing for March 9, 2027, 8:30 am, Dept. 2.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.